

Komal vs Deepak on 7 November, 2024

Author: Anil Kshetarpal

Bench: Anil Kshetarpal

Neutral Citation No:=2024:PHHC:145326

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

220

TA-306-2024

Date of decision: 07.11.2024

KOMAL

..Petitioner

Versus

DEEPAK

..Respondent

CORAM: HON'BLE MR. JUSTICE ANIL KSHETARPAL

Present: Ms. Mehak Ghangas, Advocate
for Mr. Sunny Tyagi, Advocate
for the petitioner.

None for respondent.

ANIL KSHETARPAL, J(Oral)

1. As per the office report, notice of the transfer application issued to respondent has been received back served, however, he failed to enter appearance.

2. This transfer application has been filed by the respondent's wife (the petitioner herein) with a prayer to transfer DMC/180/2021, titled as "Deepak Vs. Komal", filed under Section 13 of Hindu Marriage Act, 1955, presently pending in the Court of learned Additional Principal Judge, Family Court, Gohana, District Sonapat to any other competent Court at District Panipat on the following grounds:-

i. The respondent is already facing prosecution in FIR No.223 dated 28.12.2019, registered at Police Station Women, Panipat;

ii. A separate petition filed under Section 125 Cr.P.C., which is also pending in the Family Court at Panipat.

1 of 2 Neutral Citation No:=2024:PHHC:145326

3. Besides the above, the petitioner is also taking care and in custody of two daughters, who are 2 and 3 year old, respectively.
4. Keeping in view the aforesaid facts, the transfer application is allowed.
5. The petition bearing No.DMC/180/2021, filed under under Section 13 of Hindu Marriage Act, 1955, titled as "Deepak Vs. Komal", presently pending before Additional Principal Judge, Family Court, Gohana, District Sonapat, is ordered to be transferred to the Court of competent jurisdiction at District Panipat.
6. The transferor Court is requested to remit the case file to the transferee Court forthwith.
7. The parties through their counsel are directed to appear before the transferee Court on 03.12.2024.

November 07th, 2024
Ay

(ANIL KSHETARPAL)
JUDGE

Whether speaking/reasoned	:	Yes/No
Whether reportable	:	Yes/No